

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1093

By: Cornwell

AS INTRODUCED

An Act relating to wind energy facilities; requiring wind energy facilities lease and distribute royalties equally to certain landowners; providing for certain royalty allocation; stating act shall be applicable to certain wind energy facilities; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 160.23 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. Wind energy facilities shall lease and distribute royalties to all landowners with adjacent properties within a radius of one thousand eight hundred (1,800) feet of the base of any wind turbine in operation.

Royalties shall be paid at an equal rate to all qualifying landowners within the radius, regardless of whether their property is directly used for wind turbine construction. If a property located within the radius is partitioned, subdivided, or

1 transferred, the original royalty allocated to that property shall
2 be divided in an amount proportional to the amount of each owner's
3 property that lies within the radius, calculated as a fraction of
4 the total original property area within the radius.

5 B. This section shall only apply to the construction or
6 expansion of wind energy facilities constructed or expanded after
7 the effective date of this act.

8 SECTION 2. This act shall become effective November 1, 2025.

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